

24SMCV05390 24SMCV05390

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-30

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

30, 2026

CASE NUMBER

24SMCV05390

MOTION

Bifurcate

MOVING PARTIES

Defendants

Cedars-Sinai Surgery Center of the Pacific; Cedars-Sinai Health System;
Cedars-Sinai Kerlan-Jobe Institute; and Kevin Ehrhart, M.D.

OPPOSING PARTIES

Plaintiffs

Judith Seymour and Eugene Seymour

BACKGROUND

This case arises from allegations that cement used in Plaintiff's knee replacement surgery became dislodged, causing her pain and disability.

On November 4, 2024, Plaintiffs Judith Seymour ("Judith") and Eugene Seymour ("Eugene") (together, "Plaintiffs") brought suit against Defendants Kevin M. Ehrhart, M.D.; Cedars-Sinai Kerlan-Jobe Institute; Cedars-Sinai Surgery Center of the Pacific; and Cedars-Sinai Health System ("Defendants"), alleging four causes of action for medical malpractice (against each named Defendant); (5) elder abuse; and (6) loss of consortium.

The first five causes of action are alleged by Judith and the sixth cause of action for loss of consortium is alleged by her husband, Eugene. On June 23, 2025, Plaintiff dismissed the fifth cause of action for elder abuse via oral motion.

Defendants now move to bifurcate their statute of limitations defense at trial. Plaintiffs oppose the motion and Defendants reply.

LEGAL STANDARDS

Code of Civil Procedure section 597.5 provides:

In an action against a physician or surgeon, dentist, registered nurse, dispensing optician, optometrist, registered physical therapist, podiatrist, licensed psychologist, osteopathic physician and surgeon, chiropractor, clinical laboratory bioanalyst, clinical laboratory technologist, veterinarian, or a licensed hospital as the employer of any such person, based upon the person's alleged professional negligence, or for rendering professional services without consent, or for error or omission in the person's practice, if the answer pleads that the action is barred by the statute of limitations, and if any party so moves or the court upon its own motion requires, the issues raised thereby must be tried separately and before any other issues in the case are tried. If the issue raised by the statute of limitations is finally determined in favor of the plaintiff, the remaining issues shall then be tried.

Further, Code of Civil Procedure Section 598 provides:

The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5. The court, on its own motion, may make such an order at any time.

Further, Code of Civil Procedure section 1048 provides:

(b) The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.

ANALYSIS

Plaintiffs' action is alleged against a surgeon, surgery center, and related entities alleging medical malpractice. Further, Defendants' ninth affirmative defense asserted that Plaintiffs' claims are barred by the applicable statute of limitations.

Even further, Defendants argue that Judith's deposition testimony demonstrates she had knowledge of the underlying injury as early as April 2022, right after she had the surgery and experienced ongoing knee pain. And at least by October 2022, she stated her healing was not going well.

Therefore, pursuant to Code of Civil Procedure section 597.5, the Court finds that Defendants' statute of

limitations affirmative defense shall be tried first.

Plaintiffs argue in opposition that Section 597.5 does not actually mandate the statute of limitations defense be tried first because there is no genuine statute of limitations issue here. Plaintiffs point to the Court's ruling denying Defendants' Motion for Summary Adjudication on the grounds that triable issues of fact existed regarding Defendants' alleged intentional concealment, which suggests the statute should be tolled.

But triable issues of material fact are just that -- triable issues of material fact regarding Defendants' statute of limitations defense. Further, the statute requires only that the Defendants raise the defense in their answer. If defendants thereafter move to bifurcate the statute of limitations issue first, as Defendants have done so here, the Court is without discretion and must try the affirmative defense first.

CONCLUSION AND ORDER

For the foregoing reasons, the Court grants Defendants' motion to bifurcate, and will enter the proposed Order lodged on July 7, 2026 in conformity with the ruling.

Defendants shall provide notice of the ruling/Order, and file a proof of service of such forthwith.

DATED: July 30, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court